

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 971

Introduced by Guereca, 7.

Read first time January 12, 2026

Committee:

- 1 A BILL FOR AN ACT relating to insurance; to require coverage of asthma
- 2 inhalers as prescribed.
- 3 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** (1) Notwithstanding section 44-3,131, (a) any individual
2 or group sickness and accident insurance policy or subscriber contract
3 delivered, issued for delivery, or renewed in this state and any
4 hospital, medical, or surgical expense-incurred policy, except for
5 policies that provide coverage for a specified disease or other limited-
6 benefit coverage, and (b) any self-funded employee benefit plan to the
7 extent not preempted by federal law shall provide coverage for inhalers
8 for the treatment of asthma when prescribed by a licensed health care
9 practitioner.

10 (2) Coverage shall be provided for one form of rescue and one form
11 of maintenance inhaler that shall not be subject to a deductible,
12 copayment, coinsurance, or other cost-sharing arrangement. If the policy
13 is a high deductible health plan as defined in section 223(c)(2) of the
14 Internal Revenue Code of 1986, such coverage may be subject to the plan's
15 annual deductible if application of this requirement would result in
16 ineligibility for a health savings account.